

SUGGESTION FOR SUMMONS IN GARNISHMENT

Case No.

VA. CODE § 8.01-511

In the Circuit Court of the ☐ City ☐ County ofJUDGMENT CREDITOR:
NAMEJUDGMENT DEBTOR:
NAME

ADDRESS

V.

ADDRESS

EMAIL ADDRESS

EMAIL ADDRESS

Telephone No.

Telephone No.

JUDGMENT CREDITOR'S ATTORNEY
NAME

Social Security No.

ADDRESS

If garnishee is defendant's employer, please furnish employer's name, and state whether it is a corporation, or one or more persons trading under a fictitious or trade name.

EMAIL ADDRESS

Telephone No. VSB No.

Suggested Garnishee:

ORIGINAL JUDGMENT

DATE OF JUDGMENT

DATE EXECUTION DELIVERED

Instrument No.

JUDGMENT DOCKETED IN THIS COURT

Date Docketed

Book/Page/Instrument No.

STATEMENT

\$ Judgment Principal

..... Credits

..... Interest

..... Judgment Costs

..... Attorney's fee

..... Garnishment Costs

\$ Total Balance Due

The garnishee shall rely on this amount.

MAXIMUM PORTION OF DISPOSABLE EARNINGS SUBJECT TO GARNISHMENT

☐ Support (if not specified, then 50%)☐ 50% ☐ 55% ☐ 60% ☐ 65% ☐ State Taxes, 100%

If none of the above are checked, then § 34-29(a) applies.

I request the Clerk to summon the Suggested Garnishee to answer this suggestion.

This is a garnishment against ☐ the judgment debtor's wages, salary or other compensation. ☐ some other debt due or property, of the judgment debtor, specifically,

I have reason to believe that there is a liability on the suggested garnishee because of the execution of the "ORIGINAL JUDGMENT" described above. I certify that:

- ☐ (1) The summons is based upon a judgment upon which a prior summons has been issued but not fully satisfied; or
- ☐ (2) No summons has been issued upon this judgment creditor's suggestion against the same judgment debtor within a period of eighteen months, other than a summons which was based upon a judgment upon which a prior summons has been issued but not fully satisfied; or
- ☐ (3) The summons is based upon a judgment granted against a debtor upon a debt due or made for necessary food, rent, or shelter, public utilities including telephone service, drugs, or medical care supplied the debtor by the judgment creditor or to one of his lawful dependents, and that it was not for luxuries or nonessentials; or
- ☐ (4) The summons is based upon a judgment for a debt due the judgment creditor to refinance a lawful loan made by an authorized lending institution; or
- ☐ (5) The summons is based upon a judgment on an obligation incurred as an endorser or comaker upon a lawful note; or
- ☐ (6) The summons is based upon a judgment for a debt or debts reaffirmed after bankruptcy.

☐ I have made a diligent good faith effort to secure the social security number of the judgment debtor and have been unable to do so.

I hereby certify that the last known address of the defendant is as shown above.

DATE SUBMITTED

☐ JUDGMENT CREDITOR ☐ AGENT ☐ ATTORNEY

WARNING: Any judgment creditor who knowingly gives false information in a suggestion for Summons in Garnishment shall be guilty of a Class 1 misdemeanor.